UNITED STATES BANKRUPTCY COURT
DISTRICT OF MAINE

In re: KEVIN J. MATTSON, Debtor.	)	Chapter 7 Case No. 24-20188 PGC

MOTION FOR REMOVAL OF CHAPTER 7 TRUSTEE, PURSUANT TO 11 U.S.C. §§ 105 AND 324, AND REQUEST FOR EXPEDITED DETERMINATION

NOW COMES Creditor, Severin M. Beliveau, Esq. ("Beliveau"), pursuant to 11 U.S.C. §§ 105 and 324(a), Federal Rules of Bankruptcy Procedure 9013 and 9014, and D. Me. LBR 9013-1, 9013-4, and 9014-1, and requests that the Court remove Chapter 7 Trustee, Edmond J. Ford, Esq. ("Trustee"), as Chapter 7 trustee in the above-captioned case of Debtor, Kevin J. Mattson ("Debtor"), and order the United States Trustee ("UST") to appoint a successor Chapter 7 trustee for the benefit of Debtor's estate and its creditors.

Under § 324(a) of the United States Bankruptcy Code ("Code"), the Court can remove a Chapter 7 trustee for "cause." The factors supporting cause are: (i) incompetence; (ii) lack of disinterestedness; (iii) conflicts of interest; (iv) exercise of poor judgment; (v) improper motivations or personal animus; (vi) breach of fiduciary duties; (vii) lack of diligence; and/or (viii) conduct generally adverse to the estate's interests.

Over the last 20 months the Trustee has managed to check all the boxes for removal. And, objectively, it is not close. The Trustee should be immediately removed for the benefit of the estate and its creditors.

For the reasons set forth herein, this Motion also includes a request for expedited determination in accordance with D. Me. LBR 9013-4(a)(2)(B).

In support of his Motion, Beliveau states as follows.

I. Constitutional Authority, Jurisdiction, and Venue

1. The Court has constitutional authority to enter final orders on this Motion, it has jurisdiction over this case pursuant to 28 U.S.C. § 1334, this is a statutorily core matter pursuant to 28 U.S.C. § 157(b)(2)(A) and (O), and venue is proper pursuant to 28 U.S.C. § 1409(a).

II. Facts

2. On September 12, 2024 ("Filing Date"), multiple petitioning creditors, including Beliveau, commenced this bankruptcy case against Debtor through the filing of a Chapter 7 Involuntary Petition Against an Individual (D.E. 1).

3. On October 10, 2024, the Court issued its Order for Relief in an Involuntary Case ("Order for Relief") (D.E. 10).

4. On October 23, 2024, the Court issued its Order (D.E. 30) granting Debtor's Motion to Convert Case from Chapter 7 to Chapter 11 (D.E. 13).

5. On February 11, 2025, the Court issued its Order re-converting Debtor's case to one under Chapter 7 of the Code (D.E. 80).

6. On February 14, 2025, the Trustee was appointed successor Chapter 7 trustee (D.E. 88).

7. On February 18, 2025, Marcus Clegg Bals & Rosenthal ("Marcus Clegg") entered its appearance on behalf of Debtor (D.E. 92).

8. On February 25, 2025, Debtor signed and filed Amended Schedules under penalties of perjury (D.E. 94). Marcus Clegg filed the Amended Schedules as Debtor's counsel.

9. On May 5, 2025, an unsecured creditor in Debtor's case, Montresor LLC ("Montresor"), commenced an Adversary Proceeding against Debtor seeking the denial of his discharge under § 727(a) of the Code. See Montresor LLC v. Kevin J. Mattson, Adv. Proc. No. 25-2008 (pending).

10. Beliveau is a member of the limited liability company Montresor.

11. From May to December 2025, Montresor conducted a substantial amount of discovery in the 727 Proceeding, including the service of subpoenas for documents and records upon numerous banks, lenders, businesses, and the accounting firm where Debtor (and his other 5 companies that filed

discharge under § 727(a) of the Code. *See* Montresor LLC v. Kevin J. Mattson, Adv. Proc. No. 2025-2006 ("727 Proceeding").

10. Beliveau is a member of the limited liability company, Montresor.

11. From May to December 2025, Montresor conducted a substantial amount of discovery in the 727 Proceeding, including the service of subpoenas for documents and records upon numerous banks, lenders, businesses, and the accounting firm where Debtor (and his other companies that filed Chapter 11 cases in 2024) had accounts or otherwise did business prepetition. That discovery process generated tens of thousands of pages of documents, bank statements, and other financial records.

12. On August 7, 2025, the Trustee commenced the Adversary Proceeding entitled, Edmond J. Ford, Trustee v. Terence Conklin, *et al.*, Adv. Proc. No. 25-2009 ("Tax Credit Proceeding"), against Marcus Clegg, Seton Unit 4, LLC ("Seton 4"), and Terence J. Conklin ("Conklin"). In his Complaint, the Trustee alleged three claims: (1) avoidance of a pledge from Debtor to Conklin under § 547 of the Code; (2) avoidance of a grant of a security interest from Debtor to Conklin in the Tax Credit (as defined in the Complaint/never-to-date scheduled by Debtor/discussed *ad nauseum* in this case) under § 544 of the Code; and (3) a declaratory judgment that the Tax Credit was property of the estate under § 541 of the Code (against Seton 4 and Marcus Clegg).

13. On December 3, 2025, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("First Application to Compromise") (D.E. 178) seeking the Court's approval of a Settlement Agreement among the Trustee, Marcus Clegg, Seton 4, and Conklin relating to Debtor's case and the Tax Credit Proceeding.

14. On December 8, 2025, Montresor filed an Objection to the Proof of Claim of Conklin (Claim No. 33) (D.E. 182).

15. On December 12, 2025, Marcus Clegg filed a Motion to Withdraw as counsel for Debtor (D.E. 183).

16. On December 16, 2025, the Court issued its Order (D.E. 190) approving Marcus Clegg's request (D.E. 183) to withdraw.

17. On December 16, 2025, Debtor, then acting pro se, filed a Stipulation to Waiver of Discharge ("Waiver") (D.E. 191) in his case.

18. On December 17, 2025, the First Application to Compromise was granted (D.E. 198).

19. On December 17, 2025, the Court entered an Order (D.E. 199) granting Montresor's 727 Proceeding (as moot).

22. On February 4, 2026, the Trustee filed a Motion for Steven M. Notinger, Esq. to appear *pro hac vice* in this case on the Trustee's behalf (D.E. 221). The Court granted that Motion the same day (D.E. 222).

23. On February 6, 2026, the Trustee filed yet another supplemental document in response to Montresor's First Objection and supporting the Trustee's First Application to Compromise (D.E. 225).

24. On February 19, 2026 – despite not being a party to the contested matter between Montresor and Conklin – the Trustee filed an Application to Compromise Montresor's Objection to Conklin's Proof of Claim (D.E. 230), purportedly under Federal Rule of Bankruptcy Procedure 9019.

25. On February 25, 2026, the Court conducted a hearing on the Trustee's First Application to Compromise and Montresor's Objection thereto. At the conclusion of that hearing, the Court denied the Trustee's First Application to Compromise for many of the reasons set forth in Montresor's First Objection and because the proposed settlement was an abuse of the Trustee's discretion. *See* Minute Order (D.E. 235).

26. On March 7, 2026, Montresor filed its Objection to the Trustee's Application to Compromise Montresor's Objection to Conklin's Claim (D.E. 236).

27. On March 16, 2026, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("Second Application to Compromise") (D.E. 241), again seeking the Court's approval of a Settlement Agreement among the Trustee, Marcus Clegg, Seton 4, Conklin, and Geoff Houghton ("Houghton") in relation to Debtor's case, the Tax Credit Proceeding, and claimed avoidance claims against Houghton.

19. On December 26, 2025, Montresor filed its First Objection (D.E. 201) to the Trustee's First Application to Compromise. In its First Objection, Montresor asserted that, inter alia, the proposed settlement among the Trustee, Marcus Clegg, Seton 4, and Conklin regarding the Tax Credit Proceeding was an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the factors under Jeffrey v. Desmond.

20. On January 19, 2026, the Trustee filed a 287-page Reply memorandum with exhibits in response to Montresor's First Objection and supporting the Trustee's First Application to Compromise (D.E. 225).

21. On January 31, 2026, the Trustee filed another Supplemental Memorandum in response to Montresor's First Objection and supporting of the Trustee's First Application to Compromise (D.E. 219).

27. On March 16, 2026, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("Second Application to Compromise") (D.E. 241) again seeking the Court's approval of a Settlement Agreement among the Trustee, Marcus Clegg, Seton 4, Conklin, and Geoff Houghton ("Houghton") in relation to Debtor's case, the Tax Credit Proceeding, and claimed avoidance claims against Houghton.

28. Also on March 16, 2026, Beliveau caused Debtor to be served with a Disclosure Subpoena 14 M.R.S. § 3122 for the purpose of ascertaining, in Maine District Court ("District Court"), Debtor's ability to pay Beliveau's Judgment against him. *See also* 14 M.R.S. § 3120 – 3138.

29. On March 31, 2026, the Court conducted a hearing on Montresor's Objection to Conklin's Claim and set it for an evidentiary hearing.

30. On April 6, 2026, Montresor filed its Second Objection (D.E. 263) to the Trustee's Second Application to Compromise. In its Second Objection, Montresor asserted that, *inter alia*, the proposed settlement among the Trustee, Marcus Clegg, Seton 4, Conklin, and Houghton was an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the *Jeffrey v. Desmond* factors.

31. On April 10, 2026, the Trustee filed an Application to Employ (D.E. 278) his firm, Ford, McDonald & Borden, P.A. ("FMB"), as counsel to the Trustee pursuant to § 327 of the Code. The Court granted that Application to Employ – without hearing – on April 13, 2026 (D.E. 286).

32. On April 10, 2026, the Trustee filed his Reply in support of his Second Application to Compromise, along with a Declaration under penalty of perjury executed by Debtor supporting the Trustee's Second Application to Compromise (D.E. 280).

33. On April 15, 2026, the Court conducted a hearing on the Trustee's Second Application to Compromise and Montresor's Second Objection thereto. At the conclusion of that hearing, the Court denied the Trustee's Second Application to Compromise for many of the reasons set forth in Montresor's Second Objection and because the proposed settlement was an abuse of the Trustee's discretion. *See* Minute Order (D.E. 290).

34. On April 18, 2026, the Trustee strangely filed a Motion to Approve Form of Notice of

34. On April 18, 2026, the Trustee strangely filed a Motion to Approve Form of Notice of Compromise (D.E. 298) on the same terms advanced in his Second Application to Compromise. The next day, April 19, he withdrew it (D.E. 301).

35. On April 20, 2026, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("Third Application to Compromise") (D.E. 302) once again seeking the Court's approval of a Settlement Agreement among the Trustee, Houghton, and indirectly Debtor relating to alleged avoidance claims against Houghton.

36. On April 22, 2026, the Trustee filed a Motion to Approve Compromise Pursuant to Fed. R. Bankr. P. 9019(a) ("Fourth Application to Compromise") (D.E. 306) again seeking the Court's approval of a Settlement Agreement among the Trustee, Marcus Clegg, Seton 4, and Conklin in relation to Debtor's case and the Tax Credit Proceeding.

37. On May 12, 2026, Montresor filed its Third Objection (D.E. 327) to the Trustee's Third Application to Compromise. In its Third Objection, Montresor asserted that, *inter alia*, the proposed settlement among the Trustee, Houghton, and involving Debtor was an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the *Jeffrey v. Desmond* factors.

38. On May 13, 2026, Montresor filed its Fourth Objection (D.E. 330) to the Trustee's Fourth Application to Compromise. In its Fourth Objection, Montresor asserted that, inter alia, the proposed settlement among the Trustee, Marcus Clegg, Debtor, and Conklin was an abuse of the Trustee's discretion pursuant to Federal Rule of Bankruptcy Procedure 9019 and the *Jeffrey v. Desmond* factors.

39. On May 17, 2026, Beliveau and Montresor filed a Motion to Compel Abandonment (D.E. 332) of the state law claims against Beliveau and undersigned counsel scheduled by Debtor on his amended schedules as "Claim against Beliveau for breach of contract and fraud" and "Claim against Randy Creswell for slander."

40. In their Motion to Compel Abandonment, Montresor and Beliveau indicated that Debtor testified under oath at his § 341 Meeting of Creditors on March 11, 2025 – conducted by the Trustee over 14 months earlier – that the basis for the scheduled fraud and breach of contract claims

39. On May 17, 2026, Beliveau and Montresor filed a Motion to Compel Abandonment (D.E. 332) of the state law claims against Beliveau and undersigned counsel scheduled by Debtor on his Amended Schedule A/B ¶ 33 as follows:

- "Claim against Severin Beliveau for breach of contract and fraud"
- "Claim against Randy Creswell for slander."

40. In their Motion to Compel Abandonment, Montresor and Beliveau indicated that Debtor testified under oath at his § 341 Meeting of Creditors on March 11, 2025 conducted by the Trustee over 14 months earlier – that the basis for the scheduled fraud and breach of contract claims against Beliveau and his counsel related to the transactions involving Harpers Development, LLC ("Harpers Development"), the sale of the assets of Central Maine Commerce Center, LLP ("CMCC"), and Beliveau's purported improper receipt of funds in those transactions.

41. On May 27, 2026, the Trustee filed a "Position Statement" regarding Montresor's Objection to Conklin's Claim (D.E. 333). In his Position Statement (p.1) concerning the contested matter in which he was not a party, the Trustee stated:

> "Until there are assets to be distributed to unsecured claims, the Claim Objection is inappropriate. The Trustee is directed by the statute to object to claims only if a purpose would be served.' 11 U.S.C. § 704(a)(5). No purpose is served objecting to the Conklin Claim where there is, as yet, no realistic likelihood of a distribution."[2]

42. The Trustee's Position Statement goes on to represent Conklin's interests and presents his defenses for him to Montresor's Objection to the Claim – in the contested matter that

[1] A true copy of the Position Paper is attached hereto as Exhibit A.

[2] Of course, § 704(a)(5) does not apply to Montresor because it is not a trustee and it is entitled to object to any claim filed in the case as a party-in-interest. *See* 11 U.S.C. §§ 502(a), 502(b)(1). Perhaps it is not obvious, but the duties and fiduciary obligations set forth in § 704(a) only apply to trustees, such as the current Trustee here, not to creditors. The Trustee did state, though, in his Position Paper (filed 3½ months ago) there was "no realistic likelihood of a distribution" in this case. *See* Position Paper.

Conklin needed to tell him that they had settled.

IV. Request for Expedited Determination

F. Beliveau Does not Request Any Relief under 11 U.S.C. § 324(b)

143. Beliveau seeks expedited determination of this Motion because the Court, *sua*

47. Notwithstanding § 324(b)'s requirement that removed trustees be removed from all *sponte,* scheduled a hearing on the Trustee's Application to Employ R&B for October 6, 2026 at other cases in which they are serving, Beliveau does not seek that relief upon the Trustee's removal in 9:00 a.m.
this case under § 324(a). Beliveau leaves it to the Court and the UST to decide whether the Trustee,

144. Beliveau will be filing an Objection to that Application to Employ in advance of given his conduct in this case, is fit to serve as a trustee in other cases.

the scheduled hearing. He will also be filing an Objection to the Trustee's Motion for Attorney

IV. Request for Expedited Determination

Braunstein to appear *pro hac vice* within the 14 days provided for in the Court's approval Order.

48. Beliveau seeks expedited determination of this Motion because the Court, sua sponte, scheduled a hearing on the Trustee's Application to Employ R&B for October 6, 2026 at 9:00 a.m.

145. Beliveau submits that determination of this Motion for Removal should be heard

49. Beliveau will be filing an Objection to that Application to Employ in advance of the in advance of the Application to Employ R&B, because if cause exists to remove the Trustee scheduled hearing. He will also be filing an Objection to the Trustee's Motion for Attorney Braunstein under § 324(a), then the successor trustee should have the ability and opportunity to determine to appear pro hac vice within the 14 days provided for in the Court's approval Order.
whether retention of R&B is in the best interests of the estate, or not.

50. Beliveau submits that determination of this Motion for Removal should be heard in

146. That successor trustee will also have the opportunity to determine – objectively advance of the Application to Employ R&B, because if cause exists to remove the Trustee under § and free of all actual and potential taint and personal animus – whether the pursuit of the R&B 324(a), then the successor trustee should have the ability and opportunity to determine whether Proceeding at this final stage of the Chapter 7 case is in the best interests of the estate or, retention of R&B is in the best interests of the estate, or not.

51. For these reasons, Beliveau submits that this Motion should be considered on an alternatively, a massive liability for the estate and a complete waste of time, money, and judicial expedited basis on October 6, 2026 at 9:00 a.m.
resources over the next 2-3 years that should be avoided. *See* Federal Rule of Bankruptcy

V. Conclusion

Procedure 7041; Federal Rule of Civil Procedure 41(a)(1)(A)(i).

52. The Trustee's handling of this case has been a study of consistently, impossibly-poor

147. For these reasons, Beliveau submits that this Motion should be considered on an judgment, incompetently executed, over substantive legal matters of which the Trustee has only the expedited basis on October 6, 2026 at 9:00 a.m. barest and superficial understanding. The "administration" of this case has been a debacle.

53. The Trustee has not administered anything in almost two years. Now the "claims" he

V. Conclusion

does want to "administer" are completely made up, nowhere supported by Debtor's Amended

The Trustee's handling of this case has been a study of consistently, impossibly-poor Schedules, and directly contrary to the same claims he was cajoling people with a few months ago. And judgment, incompetently executed, over substantive legal matters of which the Trustee has only because he has bungled every aspect of the case, he has breached multiple fiduciary duties owed to the barest and superficial understanding. The "administration" of this case has been a debacle. creditors of the estate, he has engaged in multiple instances of negligence, and he has created exposure

for himself, his firm, and the estate in the form of malpractice claims and otherwise.

The Trustee has not administered anything in almost two years. Now the "claims" he

54. Worse than all that, though, is that his animating motivation in pursuing the current

does want to "administer" are completely made up, nowhere supported by Debtor's Amended

R&B Proceeding is purely retaliation against Beliveau for his perceived role in challenging the Trustee's

Schedules, and directly contrary to the same claims he was cajoling people with a few months

"authority" and of preventing the Trustee's many efforts to give away estate assets for no consideration

ago. And because he has bungled every aspect of the case, he has breached multiple fiduciary

for the direct benefit of Debtor and Marcus Clegg, all of which was rightfully rejected by the Court.

duties owed to creditors of the estate, he has engaged in multiple instances of negligence, and he

And because the Trustee and Debtor now share a common disdain for Beliveau and his counsel, they

has created exposure for himself, his firm, and the estate in the form of malpractice claims and

are now coordinating to inflict as much financial and other harm on him as possible, which, in turn,

otherwise.

has deprived of the Trustee of his once "disinterested" status.

Worse than all that, though, is that his animating motivation in pursuing the current R&B

55. Finally, the Trustee intentionally and knowingly opted for stealth and secret over

transparency and objective assessment vis-à-vis the Court and parties-in-interest. He could have sought

Proceeding is purely retaliation against Beliveau for his perceived role in challenging the

the Court's approval to retain R&B well before the firm commenced work on its bloated, internally

Trustee's "authority" and of preventing the Trustee's many efforts to give away estate assets for

inconsistent, and nonsensical Complaint, but instead, knowing that that that approach was likely to be

no consideration for the direct benefit of Debtor and Marcus Clegg, all of which was rightfully

met with substantial skepticism from the Court given the circumstances, he intentionally chose to

rejected by the Court. And because the Trustee and Debtor now share a common disdain for

expose the estate to a substantial benefit administrative expense claim, put all fees of R&B at risk, and

Beliveau and his counsel, they are now coordinating to inflict as much financial and other harm

ask the Court for its rubber-stamp approval of retention, but only after the fact.

on him as possible, which, in turn, has deprived of the Trustee of his once "disinterested" status.

56. It is difficult to understand how the Trustee has been entrusted with the role of a

fiduciary, an individual required and expected to exercise good, sound, and knowledgeable judgment

Finally, the Trustee intentionally and knowingly opted for stealth and secret over

for the benefit of constituents. That is not who the Trustee is, or what he is capable of. Under the

transparency and objective assessment vis-à-vis the Court and parties-in-interest. He could have

totality of the circumstances, cause exists for the removal of the Trustee under § 324(a) of the Code.

sought the Court's approval to retain R&B well before the firm commenced work on its bloated,

internally inconsistent, and nonsensical Complaint, but instead, knowing that that that approach

was likely to be met with substantial skepticism from the Court given the circumstances, he

intentionally chose to expose the estate to a substantial benefit administrative expense claim, put

all fees of R&B at risk, and ask the Court for its rubber-stamp approval of retention, but only

after-the-fact.

It is difficult to understand how the Trustee has been entrusted with the role of a fiduciary, an individual required and expected to exercise good, sound, and knowledgeable judgment for the benefit of constituents. That is not who the Trustee is, or what he is capable of.

Under the totality of the circumstances, cause exists for the removal of the Trustee of the under § 324(a) of the Code.

WHEREFORE, Severin M. Beliveau, Esq., requests that this Court: (i) remove Chapter 7 Trustee, Edmond J. Ford, Esq., as Chapter 7 trustee in the above-captioned case of Debtor, Kevin J. Mattson, and order the United States Trustee to appoint a successor Chapter 7 trustee for the benefit of Debtor's estate and its creditors; (ii) authorize, in the event that the Motion is not granted, the conduct of discovery on all issues relevant to this Motion and contested matter; (iii) schedule an expedited hearing on this Motion for October 6, 2026 at 9:00 a.m.; and (iv) grant him such other and further relief as is just and appropriate under the circumstances.

WHEREFORE, Severin M. Beliveau, Esq., requests that this Court: (i) remove Chapter 7 Trustee, Edmond J. Ford, Esq., as Chapter 7 trustee in the above-captioned case of Debtor, Kevin J. Mattson, and order the United States Trustee to appoint a successor Chapter 7 trustee for the benefit of Debtor's estate and its creditors; (ii) authorize, in the event that the Motion is not granted, the conduct of discovery on all issues relevant to this Motion and contested matter; (iii) schedule an expedited hearing on this Motion for October 6, 2026 at 9:00 a.m.; and (iv) grant him such other and further relief as is just and appropriate under the circumstances.

Dated: September 29, 2026

/s/ Randy J. Creswell
Randy J. Creswell, Esq.
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Severin M. Beliveau, Esq.

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Dated: September 29, 2026

/s/ Randy J. Creswell
Randy J. Creswell, Esq.
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Severin M. Beliveau, Esq.

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CERTIFICATE OF SERVICE

I, Randy J. Creswell, hereby certify that I served on this day copies of the above Motion, proposed Order, and Certificate of Service upon each of the parties listed on the Notice of Electronic Filing via the Court's Administrative Procedures Governing the Filing and Service by Electronic Means (unless otherwise indicated below).

Dated: September 29, 2026

/s/ Randy J. Creswell
Randy J. Creswell, Esq.
Counsel for Creditor,
Severin M. Beliveau, Esq.

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Service List

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